

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on September 7, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On September 7, 2023, a complaint was received by this Agency submitted by Ms. A.A.A. (hereinafter, the complainant) against IBERDROLA CLIENTES, FINANCIERA EL CORTE INGLÉS, and SANTANDER CONSUMER FINANCE for not having duly attended to her right of erasure. Therefore, this Agency proceeded to instruct the corresponding files against each of these entities, with the present procedure being against IBERDROLA CLIENTES (hereinafter, the respondent). The complainant states that the respondent has included her data in solvency files without having previously informed her of the possibility of inclusion in credit information systems and that she has not been requested to make a payment.

Furthermore, she indicates that the files have not duly notified her of the inclusion of her data. She provides copies of the erasure requests addressed to the solvency files Asnef-Equifax and Experian-Badexcug, as well as the respective responses from those entities denying the requested erasure, as the data had been confirmed by the reporting entity IBERDROLA CLIENTES.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

There is no record that the respondent has submitted any response.

THIRD: The result of the transfer procedure indicated in the previous Fact did not satisfy the claims of the complainant. Consequently, on December 7, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent a hearing procedure, so that within ten working days, it could present the arguments it deemed appropriate.

The respondent has indicated, in summary, that they have not received any request from the complainant for the exercise of data protection rights. "(...) However, a right of cancellation was received from ASNEF Equifax Servicios de Información sobre Solvencia y Crédito S.L., which was responded to by the aforementioned entity as stated in the complaint."

Additionally, "A response has been provided to the complainant regarding the receipt of this file." They attach a copy of the response sent, in which they indicate that "Currently, there are several unpaid debts with Iberdrola related to contracts ***CONTRACT.1 and ***CONTRACT.2. In this regard, several notifications have been made, by virtue of which the debt owed to this entity has been claimed. We attach some of those notifications."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, she can formulate any arguments she considers appropriate, without submitting any arguments within the established period.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in

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the performance of their functions. In the event that they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with the said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the complaining party were satisfied. Consequently, on December 7, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to correct any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons in case they do not intend to address such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to those personal data, or any copies or replicas of the same.

3. Paragraphs 1 and 2 shall not apply where the processing is necessary:

- a) for exercising the right to freedom of expression and information;

- b) for the fulfillment of a legal obligation that requires the processing of data imposed by Union Law or the laws of the Member States applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, insofar as the law referred to in paragraph 1 may make it impossible or seriously hinder the achievement of the objectives of such

processing, or
e) for the formulation, exercise, or defense of claims."

V

Joint Responsibility

Article 20 of the LOPDGGDD, concerning credit information systems, in its paragraph 2 establishes that the entities maintaining the system and the creditors, regarding the processing of data related to their debtors, shall be considered joint controllers of the data processing, applying the provisions of Article 26 of Regulation (EU) 2016/679, with the creditor entity being responsible for ensuring that the requirements for inclusion in the debt system are met, being liable for its non-existence or inaccuracy. Article 26 of the GDPR, Joint Controllers, states that

"1. When two or more controllers jointly determine the purposes and means of processing, they shall be considered joint controllers of the processing. The joint controllers shall determine in a transparent manner and by mutual agreement their respective responsibilities in complying with the obligations imposed by this Regulation, in particular regarding the exercise of the data subject's rights and their respective obligations to provide information referred to in Articles 13 and 14, unless, and to the extent that, their respective responsibilities are governed by Union or Member State law applicable to them. Such an agreement may designate a contact point for data subjects.

2. The agreement referred to in paragraph 1 shall duly reflect the respective roles and relationships of the joint controllers in relation to the data subjects. The essential aspects of the agreement shall be made available to the data subject.

3. Regardless of the terms of the agreement referred to in paragraph 1, data subjects may exercise the rights conferred on them by this Regulation against, and before, each of the controllers."

On the other hand, the Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that "When two or more controllers process data jointly, the provision of the joint controllers regarding their respective responsibilities in relation to the exercise of the data subject's rights, especially regarding responses to access requests, shall not affect the rights of the data subjects against the controller to whom they direct their request."

VI

Conclusion

In the present case, from the examination of the documentation provided, it has been established that the complainant requested the deletion of their data from Asnef-Equifax and from Experian-Badexcug, and that these entities responded denying such deletion as the data had been confirmed by the respondent.

However, there is no documentary evidence that allows considering that the complainant has approached the respondent requesting the deletion of their data.

Data protection regulations state that "When two or more controllers jointly determine the purposes and means of processing, they shall be considered joint controllers of the processing" and that "(...) data subjects may exercise the rights conferred on them by this Regulation against, and before, each of the controllers." However, this regulation does not establish the obligation that when rights are exercised only against one of the controllers, all must respond.

Therefore, given that in the present case, the complainant did not exercise their right against the respondent, the complaint should be dismissed.

In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the complaint filed by Ms. A.A.A. against IBERDROLA CLIENTES, S.A.U.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to IBERDROLA CLIENTES, S.A.U.

In accordance with the provisions of Article 50 of the LOPDGGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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